

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

20230930-DK-BUTTERFLY-1, INC.	X	
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	:	FMC Docket No. 25-01
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Complainant,:	:	
	:	
vs.	:	
	:	
BAL CONTAINER LINE CO., LIMITED,	:	
	:	
	:	
	:	
	:	
Respondent.:	:	
	X	

RESPONDENT’S UNOPPOSED MOTION FOR ENLARGEMENT OF PAGE LIMITS

Pursuant to Rules of Practice and Procedure 69 and 71 of the Federal Maritime Commission (“Commission”), Respondent respectfully requests an enlargement of the page limits otherwise applicable to its Opposition to Complainant’s Motion to Compel Discovery, filed today. Good cause supporting this request is detailed below.

Rule 71 provides that non-dispositive motions, such as motions to compel discovery and any response thereto, may not exceed 10 pages without leave of the Presiding Officer. Respondent’s Opposition to Complainant’s Motion to Compel Discovery exceeds this limit due to the number and complexity of discovery issues raised by Complainant. Complainant’s Motion to Compel Discovery spans 35 pages, more than three times the limit imposed by Rule 71. In it, Complainant takes issue with a total of 33 discovery responses and cites significant caselaw in support of its contentions. Respondent required more than 10 pages in order to respond fully to these contentions and cite caselaw supporting its own positions. Though Complainant did not

receive leave of the Presiding Officer to enlarge its page limit, Respondent finds it appropriate to do so for its opposition.

Counsel for the parties met and conferred on April 28, 2025 via email regarding the instant motion. Counsel for Complainant indicated that he would not oppose Respondent's request for enlargement of page limits.

For the foregoing reasons, Respondent respectfully believes good cause exists for the Presiding Officer to grant an enlargement of page limits to Respondent's Opposition to Complainant's Motion to Compel Discovery and permit the opposition to remain on the docket as filed.

Respectfully submitted this 29th day of April, 2025.

THEODORA ORINGHER PC



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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 29th day of April, 2025, a true and correct copy of the foregoing **RESPONDENT'S UNOPPOSED MOTION FOR ENLARGEMENT OF PAGE LIMITS** was served via electronic mail on:

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